

Demonstration Response Procedure

Purpose

The University of Colorado Colorado Springs (UCCS or “university”) supports the right of the campus community to assemble for many reasons, including the expression of differing opinions, to communicate dissent, or to request certain actions from the university. The University strives to make the campus community a place of study, work, and residence where people are treated with respect and civility. We believe that supporting these rights requires that we have a fully transparent plan.

UCCS strongly values free speech in the statement of an idea and in its response. In addition to our role as a center for learning and research, we have a responsibility as a public university to foster and set an example for the respectful and non-violent dialogue of a democratic society. Learning about diverse views through free expression is at the core of our academic mission.

With freedom, of course, comes responsibility. We are committed to adhering to all campus, regent and state and federal laws and policies.

This Demonstration Response Procedure (DRP) document provides general guidance to UCCS community (students, faculty, staff, families, alumni, and our governing bodies) concerning our response to demonstrations consistent with our shared priorities and institutional values. This document also allows us to formally and broadly share our expectations (e.g. to use the lowest level of response that is appropriate) and philosophical structure (seeking to engage with demonstrators and recognizing expression as an important value of our institution) across all levels of leadership and to those working to respond to demonstrators on the ground.

This document should be used in conjunction with UCCS’s policy [400-100 Facilities Use and Scheduling](#), [Free Expression on Campus guidance](#), APS [2027](#): Code of Conduct, and the [Student Code of Conduct](#).

We encourage individuals and groups who plan to use UCCS as a site for demonstrations to reach out to the UCCS Police Department. For events that are designed for expressive activity, please also consider reaching out to UCCS Student Life or UCCS Event Services, so we can assist in making your event successful and safe (especially if you believe the event might draw controversy).

This document provides information to ensure that our engagement with demonstrators aligns with our shared priorities and institutional values.

Response Priorities

Our priorities when responding to on-campus demonstrations are as follows:

1. **Safety.** Attend to the physical safety of those involved in demonstrations as well as the campus community as a whole.
2. **Academic Mission.** Minimize disruptions to the academic mission and university operations.
3. **Engagement.** Constructively engage with demonstrators as appropriate about their issues of concern.
4. **Collaboration.** Collaborate with organizers and demonstrators to safely facilitate events and preserve freedom of expression.
5. **Policy and Procedure.** Ensure demonstrations follow other campus policies.

Response Philosophy

Protecting and promoting freedom of speech and expression is a fundamental constitutional right. It is the very bedrock of learning and is also central to the university experience. It is vital to our university community that members of the community feel free to express their views, regardless of how popular or unpopular those views may be. While the First Amendment protects the right to express one's views, it also allows the university to place reasonable time, place, and manner restrictions on that expression.

The First Amendment does not guarantee the right to say anything, any time, or in any place. To this end, demonstrations that impede or disrupt the academic mission, threaten research, violate university policies and procedures, or threaten campus/personal safety will prompt a swift and coordinated response.¹

The UCCS response to demonstrations consists of the following:

We commit to respecting freedom of speech and expression, while also advancing our values of equity for all community members. In instances where the content of a demonstration contrasts with our institutional values, counter speech by the university may be appropriate. As an institution, we reserve the right to speak against messages that are contrary to our educational mission and values, encourage more dialogue, and continue to provide opportunities for learning.

We commit to a safe campus environment. Our foremost duty as an institution is to ensure the safety of our community members. Our goal will be to listen to concerns, work to understand issues presented, and determine what response is needed. A situation will be deemed unsafe if there is physical harm, or viable threat of physical harm, to people or property. Additionally, our first responders must respond quickly to any emergency involving physical threat, regardless of the demonstration at hand. We will work in collaboration with our campus first responders to assess each situation and determine the best campus response.

¹ Please contact the Office of University Counsel with questions about whether speech is protected under the First Amendment or any other legal framework.

We believe every voice matters. We affirm the right of every student, faculty, and staff member to share their voice on our campus community.

We acknowledge our history, present, and future. Campus activism has been a vehicle for institutional and community progress throughout the history of higher education. We stand in gratitude for such activism, which made significant strides toward equity in higher education and created educational opportunities that exist today.

We seek to understand. We will seek to understand the issues that lead people to demonstrate both in the moment of demonstration and beyond. We believe understanding and maintaining lines of communication with campus leaders may help build relationships and trust. We believe extending opportunities for communication with campus leaders may offer additional avenues to voicing concerns and working in collaboration toward solving larger issues.

We communicate and engage with people in protest. We will always strive to create and maintain active communication with demonstrators and organizers during a demonstration and may call upon campus leaders to help in this endeavor. We believe creating and maintaining lines of communication before, during, and after a demonstration gives us the best opportunity to ensure safety and find opportunities for common understanding.

To meet these commitments, we will provide:

Clear Communication of Rights and Responsibilities. The university will strive to ensure that there is no confusion about the rights of individuals to express themselves and to assemble lawfully for that purpose. The UCCS website on free expression, www.uccs.edu/freeexpression, outlines our steadfast commitment to freedom of expression and academic freedom and highlights relevant policies, programs, and events. But the more challenging situations arise when demonstrators decide to violate laws or university policy. Voluntary compliance with laws or university policy is the primary objective. The university intends to respond to the violation of such laws or policies as described in this DRP, but we may also employ a range of measures like student accountability, corrective education for employees, or arrest.

Ongoing Relationship Building. The university endeavors to increase trust and understanding among campus stakeholders. Some demonstrations may not be necessary if there are effective lines of communication between would-be demonstrators and campus administration, and ongoing opportunities to raise substantive concerns with the administration.

Transparent Decision-Making Processes. To ensure an effective university response to demonstrations, coordination between university departments is essential. The campus will evaluate events in a viewpoint-neutral manner and avoid or limit the use of force against demonstrators wherever possible.

Planning and Response

Pre-Activism Planning

When the university becomes aware that students want to engage in demonstrations on campus, university administrators should work with the students to discuss considerations in the pre-activism toolkit and any relevant policies. This helps to create clarity and ensure that the students are informed of their options, choices, responsibilities, and any possible consequences that could arise due to their actions. University administrators should act as proactive educators and listen and engage with the intent to learn more about the issues at hand. University administrators are then responsible for providing students with information and sound advising, but may not plan demonstrations for, with, or on behalf of students.

Students should be encouraged to share ideas toward the goal of minimizing the risk of safety concerns and policy violations for all involved.

UCCS Proactive Steps

- **Equip every student on day one.** Beginning with new-student orientation, and continuing through on-going campus programming, we are committed to ensuring our students develop the temperament and skills to participate in constructive dialogue about divisive topics. These are learned skills that can only be mastered through practice. We will ensure students are educated on campus policy and the consequences for violating those policies.
- **Invite students to lead collaboratively across campus.** University administrators will work closely with student-facing departments to develop a consistent message and network of guidance. University administrators, staff, and faculty will cultivate and facilitate inter-communal discussions, problem-solving and relationship-building across the student populations. The university will identify campus leaders to reach out and engage students on the matters that are important to them. They will publicly celebrate and acknowledge events that align with societal norms and campus policy, fostering a culture of collaboration and mutual respect across the campus community
- **Promote healthy social norms while upholding established rules.** Violence, vandalism, doxing, threats, and intimidation are prohibited behaviors. The University will respond swiftly when those expectations are violated to protect our community and hold those who engage in those behaviors accountable. We will encourage discussion, provide opportunities for expression and provide administrators, faculty, and staff with skills and training to teach students how to participate in constructive dialogues about divisive topics.

UCCS Reaction Plan

UCCS will respond only after all factors have been deliberated and the chosen course of action is aligned with the goals of campus leadership. Responses will generally follow:

- For pre-planned events:
 - Establish a security plan in advance of the specific event with the event planner, ensure proper documentation/recording is present, and the appropriate level of UCCS representatives are present for the event.
 - Prioritize physical safety of participants and community members for the duration of the event.
- Minimize disruption to UCCS operations and our academic mission. For events not approved in advance, or events that did not follow the preapproved plan, prioritize physical safety, plus:
 - Determine what actions/activities performed by the group or individual warrant a Required Response from the university. A Required Response may be warranted if the group or individual is engaging in actions or activities including but not limited to:
 - Violation of State, or Federal Law;
 - Violation of UCCS Campus Policy 400-100 [Facilities Use and Scheduling](#);
 - Violation of UCCS [Student Code of Conduct](#) or employee [Code of Conduct](#); or
 - Violation of other Regent [law](#) or [policy](#), [system policy](#), or [campus policy](#).
- In a Required Response, the university will inform the group or individual of the applicable policy or law, and will strive to do so in a non-confrontational and supportive manner. Should the group or individual still refuse to comply with the expectations, then the university will impose consequences in accordance with the applicable law or policy.
- Formal action by UCCS police may take place in the form of an arrest and/or campus sanction where the individual and their property is removed from the campus, cited, and released:
 - Non-compliant individuals will be excluded from UCCS property, in accordance with [campus policy](#), and ordered to depart campus.
 - If after being excluded, the non-compliant individual fails to depart campus, the individual could be cited with violations of the city or criminal code, including, but not limited to, Colorado Springs Municipal Code 9.2.103 Failure to Desist or Disperse, which is punishable by a fine of no more than \$2,500.00 dollars, up to 189 days in jail and probation or a lesser combination of the three.
 - All formal action by UCCS Police will be recorded via body camera.
- The university may take any other action available to ensure the safety of its community.

Definitions

This section provides common language to help support freedom of expression on our campus. These definitions will help guide our response as an institution and ensure protection of all our rights.

Activism –The action of using vigorous campaigning to bring about political or social change.

Academic/ Classroom disruption – Students do not have a right to engage in demonstrations that disrupt their own class. The [Academic Disruption procedures](#) defines disruption as verbal and other behavior that interferes with normal academic functions. Other disruption may be subject to additional university policy, such as violations of UCCS [Student Code of Conduct](#) or employee [Code of Conduct](#).

Viewpoint neutrality – The requirement that the government not favor one speaker's message over another's regarding the same topic.

Counter speech – The university embraces counter speech as a method of expression, both for university community members and for itself. If demonstrations run counter to UCCS's commitment to inclusive and equitable educational opportunities, the university reserves the right to exercise its own speech rights.

Law Enforcement – UCCS Police are the professionals who respond to needs for law enforcement on the UCCS campus. UCCS partners with the Colorado Springs Police Department, and any other Colorado law enforcement agency, as needed.

Safety – In this document, safety means physical safety from violence or harm, or safety from specific, imminent, and targeted threats of physical harm. This does not include behavior or speech that is noisy, annoying, causing discomfort, or having an emotional impact.